

Orissa School Education (Community Participations) Rules, 2000

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State of Odisha - Act

Orissa School Education (Community Participations) Rules, 2000

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Rule ORISSA-SCHOOL-EDUCATION-COMMUNITY-PARTICIPATIONS-RULES-2000 of 2000

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Orissa School Education (Community Participations) Rules, 2000

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Department of School & Mass Education No. 1963-S. & ME.,

The 17th January 2001

Chapter I

1.

Preliminary.

(1)

These rules may be called the Orissa School Education (Community Participation) Rules, 2000.

(2)

They shall come into force at once.

(3)

These rules shall apply to all Government Primary, Upper Primary, High School and other Non-formal Education Centre like Alternate School (A.S.) Centre and Education Guarantee Scheme (EGS) Centres.

2.

Definitions.

- In these rules, unless the context otherwise requires,

(a)

"District Officer" means the Circle Inspector of School in respect of High School and District Inspector of Schools in respect of Upper Primary Schools and S.I. of School in respect of NFE etc centres and Primary Schools;

(b)

"Form" means form appended to these Rules;

(c)

"Headmaster" means academic head of any educational institution which may include the Headmaster of a Formal School or the facilitator/instructor of the Non-formal Education Centre or any other teacher or officer nominated by the concerned District Officer to carry out the duties of the Headmaster in educational institution;

(d)

"Inspecting Officer" means the C.I. of Schools in respect of High Schools, the D.I. of Schools in case of Upper Primary and S.I. of Schools in case of Primary Schools and other NFE centres and continuing Education Centres;

(e)

"School" means both formal and non-formal; and

(f)

"VEC" shall mean the School Committee constituted under rules 10 and 11.

Chapter II

Parent-Teachers' Association

3.

Constitution.

(1)

Parent-Teacher's Association for each School/ NFE centres shall be constituted by the Head-master concerned not later than the 30th June of each academic year.

(2)

The Inspecting Officer shall notify the-date and time on the notice board of the School at which students shall attend the School along with one of their parents. This notice of the Inspecting Officer shall be communicated to parents through the students of the School by the Headmaster.

(3)

The Headmaster shall then enter the names of the parents in the Register to be maintained in Form I, and should give the membership slips in Form II to all the parents.

(4)

The Headmaster shall then explain the powers, the functions, the role and the responsibility of the Parent-Teachers' Association as envisaged under these rules to all parents.

4.

Registration.

(1)

The concerned S.I. of Schools shall be Registering Authority for the Parent-Teachers Association of Primary Schools and NFE Centres within his jurisdiction.

(2)

The D.I. of Schools shall be Registration Authority for the Parent-Teachers' Associations of all Upper Primary Schools within his jurisdiction.

(3)

The C.I. of Schools shall be Registration Authority for the Parent-Teachers' Associations of High Schools.

(4)

The Headmaster of the institution shall furnish the details of the Parent Teacher's Association of his school to the S.I. of

Schools/D.I. of Schools/ and C.I. of Schools, as the case may be, in Form III. On receipt of the information from the Head of the Institution he shall assign a Registration Number to the Parent-Teachers' Association.

5.

Membership.

- The parents of all the children studying in the school and the teachers working there are Members of the Parent-Teachers' Association. However, only one of the parents has the right to vote.

6.

Corpus Fund.

(a)

Every Parent-Teachers' Association shall take decision with regard to raising of corpus Funds which in its opinion is required for the development of school infrastructure, with the prior approval of the concerned "District Officer".

(b)

Headmaster shall issue a receipt in Form IV as a token of receipt of the amount.

(c)

It shall be lawful, for the Parent-Teacher's Association to accept amount (monetary and materials) from the persons other than the members of the Parent-Teachers Association or Organisation towards corpus fund.

7.

Ordinary Meetings.

(a)

The Headmaster shall convene the meeting of the association by giving one week's notice to all parents sent through their wards returned duly attested by parents.

(b)

20% of the total members shall constitute quorum for the Parent-Teacher's Association meetings.

(c)

The Parent-Teacher's Association, in each of its meetings, shall elect one of its members as the Chairperson to preside over the meeting. The Headmaster shall conduct election by show of hands.

(d)

Every Parent-Teacher's Association is responsible for preparation of a Plan for the effective functioning of the school.

(e)

The minutes of the meeting shall be recorded by the Headmaster in the Minutes Book in Form V and signed by the least 6 (Six) member of Parent-Teacher's Association and approved by the Chairman.

8.

Function of the Parent-Teachers' Association.

(a)

The Association shall meet as often as necessary but not less than two times in a year. The Headmaster shall be the convenor. However, it is desirable that the PTA may sit quarterly in a year.

(b)

It shall be the duty of the Association to review from time to time the functioning of the school in regard to the following matters-

(i)

ensuring universal access & enrollment;

(ii)

motivating regular attendance of the children of the school, their retention and effectively arresting drop outs;

(iii)

creating interest in education by improving infrastructural facilities in school and the quality of teaching and ensuring attainment of primary objectives of universal enrolment and zero drop out rate;

(iv)

mobilisation for collection of corpus fund for the school;

(v)

sanctioning of the budget and approving the accounts of School Education Fund placed before it; and

(vi)

appointing a committee for internal audit of School Education Fund.

9.

School Committee.

- Decentralization of Education Management has been highlighted in the National Policy on Education, 1986 and the revised National Education Policy, 1992 for improved efficiency and better functionality in the whole gamut of educational institution. Educational management is primarily the function of the community. School Committee shall be a representative body of the Community to manage the educational institutions and supervise the progress of universalisation of elementary education and improvement in the quality of secondary education and regulate enrolment, regular attendance and prevent drop out from schools. Community supervision shall ensure successful functioning of the policy of decentralisation of educational management. School committee shall be the Chief Executive functionary of school management and implementation of universalisation of elementary education.

10.

Composition of School Committee.

(1)

The School Committee shall consist of nine members as per the following specification -

(i)

Ward Member/Councillor of any of the wards concerned of the Grama Panchayat/NAC/Municipality in which the school is established-1;

(ii)

Student guardians-6;

(a)

male members-3 of which one should belong to S.C./S.T. community according to availability.

(b)

female members-3 of which one should belong to S.C./S.T. community according to availability.

(iii)

Members of Voluntary Organisation or community based organisation-1.

(iv)

Headmaster of the Primary School/Upper Primary School/High School or teacher of the NFE Centre as the case may be-Member-Secretary-1.

(2)

In the event of death or transfer of residence of guardian members from the local area of the school or a guardian member ceasing to be student guardian for his/her child/children ward(s) leaving the school or otherwise his/her membership shall cease.

(3)

Ward Member/Councillor of a Grama Panchayat/NAC/Municipality will hold office in ex officio capacity. He/She shall cease to be a member of school committee as and when he/she ceased to hold charge of his/her office.

(4)

Any member of the school committee, other than Member-Secretary may at any time resign from the membership by sending a letter of resignation to the President. But such a resignation takes effect from the date on which the School Committee accepts it.

(5)

If a member of the school committee other than the Member-Secretary absents himself/herself from three consecutive meetings without prior intimation to the President, his/her membership shall ipso facto cease. The fact of obtaining such permission should find place in the proceeding of the meeting of school committee.

(6)

Vacancies of membership of the school committee other than the Members-Secretary caused due to resignation or otherwise shall be filled up from among the same category of members by a resolution of the school committee following the similar procedure as envisaged for each category.

(7)

In case of transfer/retirement/death of the Member-Secretary or in case, he/she remain on leave other than casual leave and optional holiday, the senior most teacher of the school shall remain in charge.

11.

Formation/Constitution of School Committee.

(1)

There shall be a separate school committee for each NFE Centre, Primary, Upper Primary and High School. The P.T.A. of the concerned school shall elect the school committee members except the Member-Secretary. The selection of student-guardian members shall be made in the open meeting of Parent-Teachers' Association convened for the purpose by the Headmaster of the institution as per the programme communicated to them by the Headmaster.

(2)

The Headmaster-cum-Member-Secretary or the teacher of the NFE Centre shall convene a meeting, of P.T.A. with prior notice indicating the date, time and venue of the meeting with prior consultation with S.I./D.I./C.I. of School concerned (as the case may be) and the Head-master of the neighbouring U.P./High School who would be present in the meeting.

(3)

One of the Headmasters of neighbouring schools shall preside over the meeting. Other members of the school committee other than the Member-Secretary shall be elected/selected by the P.T.A.. The Resolution of the meeting reflecting the names of the school committee shall be resubmitted by Member-Secretary to the S.I. of Schools concerned/D.I. of Schools/C.I. of Schools as the case may be. The Headmaster-cum-Members-Secretary will convene a meeting for all such elected/selected members or election of a President from among the school committee's members which shall be presided over by the Member-Secretary, in case of tie the Member-Secretary shall give his casting vote.

(4)

The term of the School Committee shall be 3 years from the date of the election of President of the school committee.

(5)

In case of School Committee becomes non-functional and does not evince any interest in development and management of the school for six months and the fact is proved, the member-Secretary shall inform this fact to the S.I. of Schools/D.I. of Schools/C.I. of Schools, as the case may be, for formation of a new school committee. After obtaining such permission a new School Committee shall be formed following the usual procedure. On formation of a new committee, the old committee facto stand dissolved.

12.

Functions of the School Committee.

(1)

The school committee in general shall -

(a)

Manage and supervise the-concerned N.F.E. center/primary/upper primary and High School in the locality;

(b)

plan for development of educational institutions of the feeding area of the school as delimited by the District Officers;

(c)

Conduct annual census of children of the age groups up to 5, 5+ to 11, 11 + to 14 and identify illiterate persons in the age group of 15 to 35;

(d)

Ensure enrolment of all non-enrolled children through enrolment drive and their retention in the school till they complete the elementary stage of education;

(e)

Ensure regularity of attendance of children in the school and present temporary discontinuance and drop out of children through persuasion of parents;

(f)

Co-ordinate the activities of Sikhya Sahayikas, Mahila Samities and other women activities to give a special thrust to girls enrolment attendance and retention; and

(g)

Prepare the budget, sanction expenditure and place proposal for expenditure before the P.T.A.

(2)

The school committee in particular shall-

(a)

Help expansion augmentation of school facilities as per need;

(b)

Beautify the school environment, develop playground children's park enrichment of plantation in school campus;

(c)

Review and monitor school health programme and ensure maintenance of child profile incorporating health aspects;

(d)

Maintain teaching-learning equipment like T.V., Two-in-one, Computers etc. to facilitate the learning.

(e)

Raise, maintain and manage school nurseries, school garden for implementing work education;

(f)

Ensure distribution of incentives such as mid-day meals, text books and other reading and writing materials, uniforms etc. and will attend the emergent needs of the school as would be necessary at the time of unforeseen accidents like fire, flood and cyclone :

(g)

Review coverage of courses/studies;

(h)

Insure excellence in overall performance of School children and review the progress of work of the School and other educational service after the examination is over;

(i)

Organise Sikhya Melas, Inter-school competition and sports;

(j)

Utilize the services of local persons preferably retired teachers, retired employees/persons interested in school matters making up all the deficiency of teachers from the community on voluntary basis or payment of fixed honorarium meeting the cost from the school education fund without creating any liability for the State Government/ Panchayats.

(k)

Invite local artisans and persons of other occupations to the school and organise interactions with the students;

(l)

Raise and manage school improvement fund/Corpus fund and ensure school development;

Provided that the fund so raised shall be kept in the S.B. Account of the nearest post office or nationalized bank to be jointly operated by the President and Member-Secretary;

(m)

Ensure regular attendance of the teachers and checking of teacher's attendance register by the committee President or any member of the committee authorised by him/her and in case of irregularity, report the matter to the higher authorities;

(n)

Intimate to the P.T.A. about the fund raised, grants received and utilisation thereof for their information;

(o)

Prepare annual development plans for the school and other educational centers and submit to the Grama Panchayat/Panchayat Samiti concerned;

(p)

Communicate copies of all reports submitted to the higher authority to the Panchayat Samiti concerned;

(q)

Attending Grama Sabha meeting by the President on behalf of School Committee;

(r)

The proceeding of the School Committee meeting may be shown to the Sarpanch/B.D.O. and inspecting officers at the time of their visit to the school;

(s)

Convene P.T.A./M.T.A. meeting and celebrate Parent Day in the school;

(t)

Award the dedicated teachers for their regularity in attendance and participation in development of the institutions and of the community as a whole.

(u)

Help the teachers to manage the mid-day meal or day food distribution; and

(v)

Co-ordinate with other organisations like Anganwadi Centers connected with primary education.

(3)

The President of the school committee shall countersign the salary statement in support of regularity of their attendance.

(4)

The Government may, from time to time, entrust such other powers, duties and responsibilities on the V.E.C.

13.

Meeting of the School Committee.

(1)

The meeting of school committee shall be held every month and record of proceedings shall be maintained. The Member-Secretary shall maintain record of such formal meetings. The S.I. of Schools in case of N.F.E. Centres and Primary Schools. (JD.I. of Schools in case of upper Primary Schools and C.I. of schools in case of High Schools) and other officers of School and Mass Education Department should make it a point to attend as many as meeting of the school committee as they can.

(2)

In case the attention of the S.I. of Schools/D.I. of Schools/C.I. of Schools is drawn for action by them, the copies shall be sent to them. The 'S.I. of Schools or the D.I. of Schools, or C.I. of Schools, as the case may be, make it a point to mention in their inspection reports about the regularity of attendance of the proceedings of the school committee meeting.

(3)

The S.I., B.R.C., D.I. and C.I. of Schools will review the working of the school committee each month and send a report to the Director, Elementary Education Orissa, Director, D.P.E.P. and the Director, Secondary Education, Orissa in the second week of the succeeding month.

(4)

The 7th of members shall constitute the quorum for holding a meeting of the schools committee.

(5)

In the case of any emergent situations, the President can requisition a special meeting of the school committee.

(6)

The S.I. of schools in case of N.F.E. centers and Primary Schools, D.I. of schools in case of Upper Primary Schools and C.I. of Schools in case of High Schools, shall ensure that the provision of these rules are made to work in case of any omissions, or commissions of the persons, the officers responsible shall be accountable. The higher officers of the School and Mass Education Department shall make periodical reviews and ensure that the systems works.

14.

Appeal and Review.

- In case of any dispute problem in the approval and functioning of the school committee, the D.I. of Schools in case of N.F.E. Centres and Primary Schools, Circle Inspector of Schools in case of Upper Primary Schools and Joint Director in case of High Schools shall be the appellate authority whose decision shall be final and binding. Collector of the district will be the reviewing authority in case of N.F.E. etc. Centres, Primary and Upper Primary Schools and High Schools.

15.

School Education Fund.

(1)

There shall be a school education fund for every school consisting of the following :-

(i)

funds released by the Government of local bodies for management or improvement of infrastructure of the school, which will not include salary grant released by the Govt.;

(ii)

funds for school contingencies released by local bodies or Government;

(iii)

funds released by the Panchayats in favour of the school;

(iv)

corpus fund collected from members and donors including grant-in-aid received from Government for further development in the schools; and

(v)

fee collected, if any, from students and donations received from other sources.

(2)

Funds shall be utilised in such manner as may be specified by the school committee in its meeting and the fund shall be operated by the President and Member-Secretary jointly.

(3)

The funds shall be spent for discharging the functions of the Committee.

(4)

The funds shall be utilized and spent in accordance with the guidelines to be issued by the S. & M.E. Department from time to time.

(5)

The accounting procedure and audit of the accounts of the fund shall be specified by the S. & M.E. Department and the same shall be duly followed by the School Committee.

16.

Repeal.

- The erstwhile E. & Y.S. Department Resolution No.2870-VIEA-94/90, dated the 19th January 1991 and such other executive instructions in this regard are hereby repealed.

Form I

(Register to be maintained by the Head of the Institutions)

Sl. No.

Name of the parent

Name of the child

Relationship

Class in which the child is studying

(1)

(2)

(3)

(4)

(5)

Form II

(Membership slip to be issued by the Head of the Institution to the Parents)

Shri/Shrimati.....is F/o., M/o., G/o..... studying in..... Class.....Section of this school is a member of the Parent-Teacher's Association.

Date

Signature and seal of the Head of the Institution.

Form III

(To be submitted by the Head of the Institution)

From

To

The

Headmaster/Headmistress.....School, ?.....

The.....(as

specified in Rule 4)?.....

Sir/Madam,

Subject:- P.T.A.- Submission of P.T.A. details-Regarding

I submit the following particulars of the Parent-Teachers' Association of our.....School.....School.....Block,.....District,

1. Total No. of Parent Members..

2. No. of Parent Members present in the meeting ..

3. No. of Teachers in the School

4. Name of the Head of Institution..

I request that the Association be registered and a registration number be allotted to the Association.

Signature with Office Seal

Form IV

(Receipt for donations)

Received an amount of Rs.....(Rupees.....) Address.....towards his/her contribution to the Corpus fund of.....School,.....Village.....,Block.....District.....The same has been entered into the concerned Accounts Register at page.....

Signature of the Head of the Institution with Seal

Form V

(Minutes of the meeting to be recorded by the Headmaster)

Minutes of the Parent-Teachers1 Association meeting held on (date).....The Parent-Teachers1 Association has unanimously resolved as follows -

Resolutions :

(1)

(2)

(3)

(4)

Signature of the Members-Present :

(1)

(2)

(3)

(4)

(5)

(6)

Chairperson

Signature of the Headmaster

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